40 Questions (from Tell Me How It Ends)

By Valeria Luiselli

NARRATOR: I started working as an interpreter for Spanish-speaking children in the NYC Immigration Court in March 2015. On my first day of work, I took the subway downtown and walked to the ominous building at 26 Federal Plaza. Inside, the building branches into hallways, offices, courtrooms, and waiting rooms, with few people you can ask for assistance. It's easy to get lost. The building is, in a way, a replica of the U.S. immigration system. Some find their way out and some don't. Those who don't might remain there forever, invisible specters wandering the hallways, imprisoned in circular nightmares.

INTRODUCTION

**As a translator, it's Luiselli's task to help these kids, most of whom came alone and were either caught at the border or went to the authorities themselves. Without the assistance of an adult or other family member, these children must answer 40 questions that will determine their fate.*

For instance, Question 7 asks, "Did anything happen on your trip to the U.S. that scared you or hurt you?" Luiselli says that children rarely give an honest answer, not because they're lying or evasive, but because the truth is too awful to tell. You see, 80 percent of migrant girls and women who cross Mexico to the U.S are raped along the way. She reminds us that few immigrants abandon their past and brave death to come to America for dark reasons. They come as an expression of hope.

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NARRATOR: The room where screenings are conducted feels like a small refugee camp, furnished only with benches lined up one after another. At the front, a wooden balustrade cordons off an area for the interviews -- at which children, lawyers, and interpreters sit. Crayons and paper are set at the ends of two large mahogany tables to entertain the younger children. During each interview, the child's relatives sit on the benches on the other side of the balustrade and wait. It's against protocol for relatives to join the children during the interviews, since their presence could influence the children's answers.

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I didn't quite grasp the bigger picture during the first screenings. Blindly, I followed all the questions on the questionnaire, one by one, and translated the answers. What I was really doing was providing backup for the federal government's decision to create a ***priority*** juvenile docket.

Before the immigration crisis was declared in the summer of 2014, minors were given twelve months to find a lawyer before their first court hearing. But then, the Obama Administration created the "priority juvenile docket," which reduced that window to 21 days. What child can find a lawyer in twenty-one days? The priority docket grouped together cases involving unaccompanied minors from Central America and moved them to the top of the list. For the children involved, being at the top of the list accelerated deportation proceedings by 94%. The priority juvenile docket was the cruelest possible response to the arrival of refugee children -- a backdoor escape route from the reality suddenly knocking at the country's door.

I recall the first story I heard in court. Perhaps because of a piece of paper he pulled from his pocket toward the end of the interview. Its creases and edges were worn. He unfolded it gently [and] placed it in front of me. He explained that it was a copy of a police report he had filed more than a year and a half earlier. The report stated in capital letters and with some grammatical mistakes, that the subject in question raised a complaint against gang members who waited for him every day outside his high school, followed him home, and had begun threatening to kill him. It ended with a vague promise that the police would "investigate" the situation. **[Question #38: What do you think will happen if you go back home? Question #39: Are you scared to return?]**

After showing it to me, the boy folded the document back up and put it in his pants pocket, rubbing his palm now and then against the denim, as if he were activating a lucky charm. Originally, it had been a legal document, a complaint filed by a boy hoping to change his life. Now it was a road map of migration, a testimony to the

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5,000 miles it had traveled inside a boy's pocket, on foot, in trucks, across national borders, all the way to an immigration court in a distant city, where it was finally read by a stranger who had to ask: ***[Question #1]*** Why did you come to the United States?

This "immigration crisis" -- the sudden surge of Central American children to the United States was viewed as a problem that Homeland Security was "suffering" and that Congress and immigration judges had to "solve." The political response therefore, always centered on one question: What do we do with all these children now? Or, in blunter terms: How do we get rid of them?

Questions 9, 10, and 11 on the intake questionnaire are: "How do you like where you're living now?"; "Are you happy there?"; "Do you feel safe?" It's hard to imagine that these children, considered a burden to institutions and unwanted intruders by a large part of society, soon to face a judge and defend themselves against a removal order, "like" where they are living. *(pause)*

Often, my daughter asks me: So, how does the story of those children end? I don't know how it ends ***yet*** . . . [but] there is one story -- a story I tell her only in pieces. It begins with two girls in the courtroom. They're 5 and 7 years old, from a small village in Guatemala. Spanish is their second language. We sit around the mahogany table, and their mother observes from one of the benches in the back. The little girl concentrates on her coloring book, a crayon in her hand. The older one has her hands crossed as an adult might, and she answers my questions one by one. She is a little shy but tries to be clear and precise in her answers, delivering all of them with a big smile, toothless here and there. *(to the child)* ***[Question #1]*** Why did you come to the United States?

LITTLE GIRL: I don't know.

NARRATOR: ***[Question #6]*** How did you travel here?

LITTLE GIRL: A man brought us.

NARRATOR: A ***coyote****?*

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LITTLE GIRL: No, a man.

NARRATOR: ***[Question #6, con't]*** And where did you cross the border?

LITTLE GIRL: I don't know.

NARRATOR: Texas? Arizona?

LITTLE GIRL: Yes! Texas Arizona.

NARRATOR: I realize it's impossible to go on with the interview, so I ask the lawyers to make an exception and allow the mother to meet with us. We go back to question 1, and the mother responds for the girls, explaining things, and also telling her own story.

When the younger of her daughters turned two, the woman migrate[d] north, leaving them in the care of their grandmother. She crossed two national borders with no documents. She wasn't detained by the Border Patrol and after a few weeks she arrived in Long Island. Years passed, and the girls grew up; she remarried; she had another child.

One day she called her mother and said that the time had come: She had saved enough money to bring the girls over. The grandmother noted the instructions and explained them to the girls: A man was going to come for them, a man who would help them get back to their mother. She told them that he would keep them safe.

The day before they left, their grandmother sewed a 10-digit phone number on the collar of the dress each girl would wear. The girls had not been able to memorize the number so she had decided to embroider it on their dresses and repeat, over and over, a single instruction: They should never take these dresses off, not even to sleep, and as soon as they reached America, as soon as they met the first American policeman, they were to show the inside of their collars to him. He would dial the number the rest would follow.

The rest did follow: They made it to the border, were kept in custody, in the ***hielera*** ("icebox"). They didn't remember how many days, but said they were colder there than they had ever been. After that they went to a shelter, and a few weeks later they

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were put on a plane and flown to JFK, where their mother, baby brother, and stepfather were waiting for them.

That's how it ends -- but of course it ***doesn't*** end there. That's just where it begins, with a court summons: a Notice to Appear. Once children receive a Notice to Appear, they have to present themselves in immigration court. It is the children's responsibility to find a lawyer who can defend their case against the U.S. government attorney seeking to deport them.

The most common forms of immigration relief are special immigrant juvenile status (S.I.J.) and asylum. For a child to apply for S.I.J. status, a court must determine that he or she is impeded from reunification with at least one parent because of abuse, abandonment or neglect, and that return to the home country is not in the child's best interest. Asylum is granted to people who are fleeing from persecution of their race, religion, nationality, or political opinion. It is not enough that these children have suffered unspeakable harm, that they will continue to fall victim to the targeted violence of criminal groups. The harm or persecution must be ***proved***.

[So] . . . If the child answers the questionnaire "correctly," he or she is more likely to have a pro bono attorney. In the warped world of immigration, it is a "correct" answer when, for example, a girl reveals that her father is an alcoholic who physically or sexually abused her, or when a boy reports that he received death threats or that he was beaten repeatedly by gang members — ***and*** has the physical injuries to ***prove*** it. When children don't have enough battle wounds to show, they will most likely be "removed" to their home country, often without a trial.

The interpreters have no control over the type of legal assistance a child receives. We listen to their stories in Spanish and note key points in English. We must pay close attention to the details and find ways to classify them. We look for categories for each story that may tip the legal scale in a future trial — categories such as abandonment, prostitution, sex trafficking, gang violence, and death threats. But we cannot make up

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the answers, nor can we lead the children to give us answers that are favorable to their cases.

In my interview with the girls, their answers weren't really working in their favor. What I needed to hear was that they had been doing hard labor, labor that put their safety in danger; **[Question #29: How many hours did you work each day?]** that they were being exploited, abused, punished, **[Question #32: How often were you punished?]** maybe threatened with death by gangs **[Question #37: Have you ever been a member of a gang? Any tattoos?]** The girls were so young that even if they had a story that might secure legal intervention, they didn't have the words to tell it. *(pause)* [But] One boy says . . .

BOY: The gang followed me after school, and I ran, with my eyes closed I ran.

NARRATOR: So I write that down, and then, in the margin, make a note: Persecution?

BOY: And they followed me to school and later they followed me home with a gun.

NARRATOR: So I write that down too, and then make a note: Death threats?

BOY: They kicked my door open and shot my little brother.

NARRATOR: So I write that down too, but then I'm not sure what note to make in the margin: Home country poses life-threatening danger? Not in child's best interest to return? What words are the most precise ones? All too often I find myself not wanting to write anymore, wanting to just sit there, quietly listening, wishing that the story I'm hearing had a better ending.

I listen, hoping that the bullet shot at this boy's little brother misses. But it doesn't. The little brother is killed, and the boy flees. And now he is being screened, by me. His screening, like many others, is filed and sent to a lawyer: a snapshot of a life that will wait in the dark until ***maybe*** someone finds it and decides to make it a case.

[Question 40: Who will take care of you if you were to return to your home country?]

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SOURCE INFORMATION

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AWARD HISTORY

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**Introduction information derived from an NPR Book Review by John Powers*
https://www.npr.org/2017/04/06/521791352/tell-me-how-it-ends-offers-a-moving-humane-portrait-of-child-migrants

NOTE*: *All 40 Questions can be found here
https://www.reddit.com/r/immigration/comments/dlkm0z/the_40_questions_from_valeria_luisellis_book_tell/

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